

STATE OF NEW YORK

10883--A

IN ASSEMBLY

April 8, 2026

Introduced by M. of A. GALLAGHER -- read once and referred to the Committee on Cities -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to authorize the city of New York to sell certain lands now or formerly under the waters of Whale Creek otherwise known as Wyckoff Creek, and formerly a tributary of Newtown Creek

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Notwithstanding any inconsistent provisions of section 20
2 of the general city law or section 383 of the New York city charter
3 restricting the alienation of waterfront property and land under water,
4 the city of New York is hereby authorized to sell and convey all or any
5 part of the right, title and interest which the city now has in the
6 lands now or formerly under the waters of Whale Creek, otherwise known
7 as Wyckoff Creek, and formerly a tributary of Newtown Creek, situated in
8 lot 1 on block 2612 on the tax map of the city of New York for the
9 borough of Brooklyn. Except as otherwise provided in sections two and
10 three of this act, the sale of such lands shall be subject to section
11 384 of the New York city charter.

12 § 2. Notwithstanding any inconsistent provision of section 384 of the
13 New York city charter and subject to review pursuant to sections 197-c
14 and 197-d of the New York city charter, for a period of five years after
15 the effective date of this act, the mayor of such city may authorize the
16 sale, without competitive bidding and for such consideration and upon
17 such terms and conditions as shall be determined by the mayor of such
18 city, of the city's right, title and interest in the real property
19 described in section one of this act to an eligible person, persons or
20 entity, who or which are defined in section three of this act.

21 § 3. For purposes of this act, an eligible person, persons or entity
22 shall mean a person, persons or entity that owns abutting upland real
23 property at the time of such sale of property described in section one
24 of this act.

25 § 4. The alienation and conveyance of the waterfront property and land
26 underwater authorized by section one of this act shall not occur until

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 the city of New York obtains an independent appraisal of the lands to be
2 alienated. In the event that the consideration received by the city of
3 New York from the purchase of the alienated lands is not equal to the
4 fair market value of such property, the city of New York shall dedicate
5 additional funds for the acquisition of additional waterfront property
6 and/or cause funds to be made available for capital improvements to its
7 existing waterfront property in the borough of Brooklyn to equal such
8 fair market value appraisal.

9 § 5. This act shall take effect immediately.